

PASSED

CHICKASAW TRIBAL LEGISLATURE

Permanent Resolution Number 31-003

**Amendments to Title 6, Chapter 2 of the Chickasaw Nation Code
(Adjudication Hearing)**

WHEREAS, in accordance with Article VII, Sections 4 and 7 of the Constitution of the Chickasaw Nation, the Chickasaw Tribal Legislature shall enact rules and regulations pertaining to the Chickasaw Nation, and shall make decisions pertaining to the acquisition, leasing, disposition and management of real property, subject to federal law, and

WHEREAS, in accordance with Article XI, Section 1 of the Constitution of the Chickasaw Nation, the Governor shall perform all duties appertaining to the office of Chief Executive. He shall sign official papers on behalf of the Nation, and

WHEREAS, the Chickasaw Tribal legislature has enacted rules and regulations regarding adjudication hearings, and

WHEREAS, the Legislature desires to amend those rules and regulations.

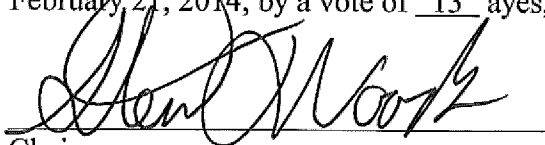
NOW, THEREFORE, BE IT RESOLVED, that the Chickasaw Tribal Legislature hereby approves and adopts the following amendments to Title 6, Chapter 2 of the Chickasaw Nation Code, all other sections and parts of sections to remain the same (additions are shown in red, deletions are stricken through):

"SECTION 6-204.14

ADJUDICATION HEARING.

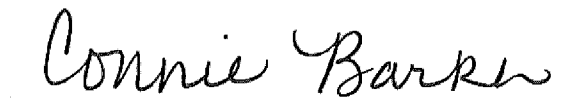
E. A hearing shall be had before a Judge ~~The Child or the named respondents may demand a jury trial to determine whether the Nation has met its burden of proving by a preponderance of the evidence that the factual allegations in the petition are true and correct. Unless a jury is demanded, it shall be deemed to be waived."~~

Executed in regular session of the Chickasaw Tribal Legislature, meeting at Ada, Oklahoma, on February 21, 2014, by a vote of 13 ayes, 0 nays, 0 abstentions.



Chairperson

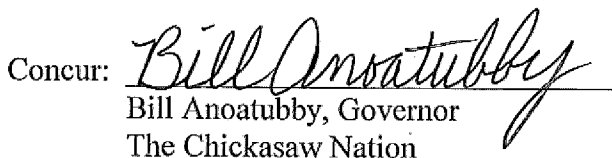
Chickasaw Tribal Legislature



Secretary

Chickasaw Tribal Legislature

Concur:


Bill Anoatubby, Governor
The Chickasaw Nation

Date: FEB 21 2014

CHICKASAW TRIBAL LEGISLATURE
Permanent Resolution Number 31-003
Amendments to Title 6, Chapter 2 of the Chickasaw Nation Code
(Adjudication Hearing)

Explanation: This resolution amend Title 6 of the Chickasaw Nation Code to eliminate the jury trial option for adjudication hearings. Amendments made to Title 6 of the Chickasaw Nation Code in May, 2013, (PR30-007), included the ability of certain parties to request a jury trial for an adjudication hearing. The Chickasaw District Judge has requested that the jury trial option be eliminated because adjudication hearings are required to be held within thirty (30) days of its request and it takes the Court longer than 30 days to set up a jury trial. It is also believed that the jury trial option has been eliminated in the Oklahoma Statutes.

Presented By: Court Development Committee